Chapter XVIII—Office of Stabilization Administrator, Office of War Mobilization and Reconversion

[Directive 96]

PART 4001—STABILIZATION OF WAGES AND PRICES

MAXIMUM PRICES FOR CARBON AND ALLOY STEEL MILL PRODUCTS

Whereas on January 21, 1946, a strike was called among the employees of the steel producing industry, resulting in substantially complete suspension since that time of the operations of the industry; and

Whereas the President, upon the basis of the investigations conducted by the fact-finding panel appointed by him to investigate the issues in the steel strike, has recommended an increase of 18½¢ per hour in the wage rates paid in the steel producing industry; and

Whereas the representatives of the steel producing industry contend that wage increases cannot now be made unless increases are authorized in the maximum prices for the products of the industry; and

Whereas after investigation it has been found and determined that if an increase of 18½¢ per hour is put into effect, price relief will be required by the steel producing industry, on the basis provided herein in order to permit that industry, during the coming twelve months, to earn an average rate of profit approximately equal to the rate of return on net worth earned by the industry in the peacetime base period applicable to it:

Now, therefore, by virtue of the authority vested in me by the Stabilization Act of 1942, as amended, and by Executive Order 9250 of October 3, 1942 (7 F.R. 7871), Executive Order 9328 of April 8, 1943 (8 F.R. 4681), Executive Order 9599 of August 18, 1945 (10 F.R. 10155), Executive Order 9620 of September 20, 1945 (10 F.R. 12033), the directive of October 12, 1945, Executive Order 9651 of October 30, 1945 (10 F.R. 13487), and Executive Order 9697 of February 14, 1946, and in order to aid in the effective transition to a peacetime economy, the Price Administrator is directed:

(1) To authorize, upon resumption of substantial production, increase in maximum prices for carbon and alloy steel mill products in such amounts as in his judgment will be equivalent to an increase of $5.00 per ton for all such carbon and alloy steel mill products.

(2) To distribute such maximum price increases, after consultation with the appropriate industry advisory committees, in such manner and in such amounts as in his judgment will serve best (a) to encourage maximum production of items in greatest demand; (b) to establish a price structure adapted to the needs of the transition and postwar periods; (c) to minimize the impact of the increase upon the prices of consumer goods; and (d) to remove or minimize hardship to smaller and non-integrated producers.

(3) To make such maximum price increases effective as of the date of this directive by means of an adjustable pricing order; to announce maximum price adjustments of an amount equal to at least nine-tenths of the aggregate increases herein directed within two weeks from the date of this directive; and to complete the remaining maximum price adjustments herein directed within five weeks of the date of this directive.

(4) To review the maximum prices established pursuant to this directive on the basis of reports of not less than three months' operating experience, and, if necessary, to adjust such maximum prices to the level at which they would have been set in the light of such experience and in accordance with the pricing standards prevailing at the time of such review.

(E.O. 9250; E.O. 9328, 3 CFR, Cum. Supp. pp. 1213, 1267; E.O. 9599, 10 F.R. 10155; E.O. 9620, 10 F.R. 12033, and E.O. 9651, 10 F.R. 13487)

Issued and effective this 15th day of February 1946.

J. C. COLLET,
Stabilization Administrator.

Authorized and directed pursuant to the authority conferred upon me by the War Mobilization and Reconversion Act of 1944 and by Executive Order 9347 of May 27, 1943 (8 F.R. 7207), and Executive Order 9620 of September 20, 1945 (10 F.R. 12033).

JOHN W. SNYDER,
War Mobilization and Reconversion Director.

[F. R. Doc. 46-2670; Filed, Feb. 18, 1946; 9:46 a. m.]

TITLE 34—NAVY

Chapter I—Department of the Navy

PART 9—NAVAL RESERVATIONS

CROSS REFERENCE: For revocation of order tabulated in § 9.5 see PLO 311, Title 43, Chapter I, *infra.*

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—General Land Office

Subchapter A—Alaska

[Circ. 1612]

PART 69—MINERAL LANDS; GENERAL MINING REGULATIONS

Subchapter L—Mineral Lands

PART 185—GENERAL MINING REGULATIONS

PUBLICATION OF PATENT APPLICATIONS

The second paragraph of § 69.6 is amended to read as follows:

§ 69.6 *Rates for newspaper publications.* * * *

The charge for the publication of notice of application for patent in a mining case in all districts shall not exceed the legal rates allowed by the laws of Alaska for the publication of legal notices wherein the notice is published, and in no case shall the charge exceed $9.40 for each 10 lines of space occupied. Such charge shall be accepted as full payment for the publication for the entire period required by law.

Section 185.58 is amended to read as follows:

§ 185.58 *Publication in newspaper and posting in district land office.* Upon the receipt of applications for mineral patent and accompanying papers, if no reason appears for rejecting the application, the register will, at the expense of the claimant (who must furnish the agreement of the publisher to hold applicant for patent alone responsible for charges of publication), publish a notice of such application for the period of 60 days in a newspaper published nearest to the claim, and will post a copy of such notice in his office for the same period. If the notice is published in a daily paper, it shall be published in the Wednesday issue for nine consecutive weeks; if weekly, in nine consecutive issues; if semi-weekly or triweekly, in the issue of the same day of each week for nine consecutive weeks. In all cases the first day of issues shall be excluded in estimating the period of 60 days.

The first paragraph of § 185.88 is amended to read as follows:

§ 185.88 *Charges not to exceed legal rates.* (a) The charge for the publication of notice of application for patent in a mining case in all districts, exclusive of Alaska, shall not exceed the legal rates allowed by the laws of the several States for the publication of legal notices wherein the notice is published, and in no case shall the charge exceed $7.50 for each 10 lines of space occupied. Such charge shall be accepted as full payment for the publication for the entire period required by law.

The two paragraphs added to § 185.88, after the first paragraph, by Circ. No. 1598, dated March 8, 1945, are revoked.

FRED W. JOHNSON,
Commissioner.

Approved February 5, 1946, *Provided, however,* That these amendments to the regulations shall become effective on the 1st day of the month following the expiration of 60 days after the date of their publication in the FEDERAL REGISTER and apply only to those notices the initial copy of which is published after the effective date of these amendments.

OSCAR L. CHAPMAN,
Assistant Secretary.

[F. R. Doc. 46-2671; Filed, Feb. 18, 1946; 3:19 p. m.]

Appendix—Public Land Orders

[Public Land Order 311]

NEVADA

REVOKING EXECUTIVE ORDER NO. 8821 OF JULY 16, 1941

By virtue of the authority vested in the President, and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 8821 of July 16, 1941, reserving a tract of land in the SW¼ of sec. 8, T. 23 S., R. 64 E., M. D. M., Nevada, containing 20 acres, at the Boulder City Airport site, for use for naval aviation purposes under the jurisdiction

of the Secretary of the Navy, is hereby revoked.

The hangar and appurtenant facilities constructed on the land by the Navy Department, being no longer needed by that Department, are hereby transferred to the Department of the Interior.

OSCAR L. CHAPMAN,
Acting Secretary of the Interior.

JANUARY 21, 1946.

[F. R. Doc. 46-2672; Filed, Feb. 18, 1946; 3:19 p. m.]

[Public Land Order 314]

TEXAS

ESTABLISHING THE HAGERMAN NATIONAL WILDLIFE REFUGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the following-described lands in Texas, acquired or being acquired by the United States in connection with the Denison Dam and Reservoir on the Red River, which have been determined by the Secretary of the Interior to be suitable for refuge and breeding ground purposes for migratory birds and other wildlife, are hereby reserved and set apart for the use of the Department of the Interior as the Hagerman National Wildlife Refuge, the reservation as to the lands now being acquired to become effective upon the acquisition of title thereto by the United States:

A tract or parcel of land in Grayson County, Texas, embracing all or parts of the following patented surveys: Empson Thompson, Wm. C. Caruthers; Mary E. Hubbard; W. H. Anderson; Bradford Norris; Washington Coffee; Jonathan Morris; Martin K. Snell; James Coryell; John D. McLeod; W. F. Culver; Jonathan Barefoot; William Allen; Edward C. Smithson; Orlando H. Willis; J. R. Lewis; Isham Willingham; J. C. Willingham; E. M. Chaffin, W. W. Wilkins and J. W. Story; T. J. Robinson; J. H. Chaffin; Henry Symcox; Thos. J. Shannon, Sr.; A. C. Ingram; W. F. Chaffin; Isaac Abraham; Wm. A. Thompson; James Doniphan; J. D. Orton; J. M. Minton; B. R. Long; Samuel A. Long; Timothy Pilsbury; Edmond Tucker; R. J. Hart; Samuel Welcher; S. D. Steedman; J. B. Gorrell; M. C. Gentry; J. S. Mayber; Solomon Bostick; Lafayette Henderson; F. M. Goode; A. M. Bryson, Abstract No. 1459; Elizabeth Reed; John Yates; E. L. Stickney; W. M. Kilgore, Abstract No. 694; S. S. Bostick; Z. T. Mills; W. M. Kilgore, Abstract No. 695; A. M. Bryson, Abstract No. 195; W. M. Kilgore, Abstract No. 695; Joseph Sappington; W. H. Dryden; Nancy A. Hart; Wm. Cottingham; Reason Ellmore; G. H. Richardson; W. A. Hart; and T. P. Witten, and described as follows:

Beginning at the northeast corner of the Isaac Abraham Survey, Abstract No. 1578, from which the U. S. Engineers, Denison Reservoir Monument No. 312 bears N. 51°12'45" W., 33.89 feet, said point being the center of the intersection of cross roads;

Thence S. 02°02' W., 2651.4 feet along the east line of said Isaac Abraham Survey to the southeast corner thereof, the northeast corner of the William A. Thompson Survey, Abstract No. 1282;

Thence S. 02°02' W., 2660.6 feet along the east line of said William A. Thompson Survey to the southeast corner thereof;

Thence N. 87°58' W., 5320.9 feet along the south line of the William A. Thompson Survey and the south line of the James Doniphan Survey, Abstract No. 385, to the southwest corner of said James Doniphan Survey, the southeast corner of the S. D. Steedman Survey, Abstract No. 1585;

Thence N. 02°31' E., 780.2 feet along the line between said Doniphan and Steedman Surveys to the northeast corner of said Steedman Survey;

Thence S. 88°22' E., 1245.3 feet; N. 02°07' E., 992.6 feet; N. 87°53' W., at 1279.6 feet cross the line between the James Doniphan and the Samuel A. Long Surveys, continuing on this bearing, in all, 2204.6 feet;

Thence N. 02°07' E., 759.3 feet; N. 87°38' W., 1696.6 feet; N. 01°27' E., 1187.6 feet; N. 88°33' W., 2375.1 feet; S. 01°27' W., 1156.7 feet; N. 87°48' W., 305.0 feet to the line between the Samuel A. Long and the Timothy Pilsbury Surveys;

Thence S. 02°11' W., 1751.0 feet along the line between said Long and Pilsbury Surveys to the southwest corner of said Samuel A. Long Survey, the southeast corner of said Timothy Pilsbury Survey and the north line of the S. D. Steedman Survey, Abstract No. 1521;

Thence S. 87°39' E., 3720.9 feet along the line between the Samuel A. Long and the S. D. Steedman Surveys;

Thence S. 02°37' W., 790.4 feet to the north line of the W. P. Henry Survey, Abstract No. 579, the south line of the S. D. Steedman Survey, Abstract No. 1521;

Thence N. 88°03' W., 2315.4 feet along the line between said Steedman and Henry Surveys, passing the northwest corner of said Henry Survey, the northeast corner of the J. B. Gorrell Survey, Abstract No. 472, to a point on the line between the S. D. Steedman and the J. B. Gorrell Surveys;

Thence S. 01°58' W., 565.0 feet; N. 88°02' W., 1140.8 feet to the line between the J. B. Gorrell and the M. C. Gentry Surveys;

Thence N. 88°03' W., 1065.0 feet; S. 02°05' W., 1642.3 feet; N. 87°55' W., 1090.0 feet to the line between the M. C. Gentry and the J. S. Mayber Surveys;

Thence N. 02°05' E., 2010.0 feet along the line between the said Gentry and Mayber Surveys;

Thence N. 84°56' W., 480.5 feet; S. 86°48' W., 677.8 feet; S. 02°18' W., 3053.3 feet to the south line of the J. S. Mayber Survey, Abstract No. 887, the north line of the J. W. Ray Survey, Abstract No. 1053;

Thence N. 88°00' W., 425.9 feet along the line between said Mayber and Ray Surveys;

Thence S. 02°39' W., 2650.7 feet along the west line of said J. W. Ray Survey to the southwest corner thereof, the southeast corner of the Z. T. Mills Survey, Abstract No. 1497;

Thence S. 89°41' W., 1271.3 feet along the south line of said Z. T. Mills Survey, the north line of the John Stice Survey, Abstract No. 1563, to the northwest corner of said John Stice Survey, the northeast corner of the W. H. Dryden Survey, Abstract No. 1481;

Thence S. 03°53' W., 2601.0 feet along the line between the said Stice and Dryden Surveys to the southwest corner of said Stice Survey, the southeast corner of said Dryden Survey and the north line of the Nancy A. Hart Survey, Abstract No. 585;

Thence S. 02°28' W., 1319.5 feet; N. 88°49' W., 571.4 feet; S. 06°26' W., 1352.0 feet, to the south line of said Nancy A. Hart Survey, the north line of the Silas Farris Survey, Abstract No. 1434;

Thence N. 88°19' W., 959.6 feet along the south line of the Nancy A. Hart and the W. A. Hart Surveys, the north line of the Silas Farris and the T. P. Witten Surveys, passing through the corner of the Hart, Hart, Farris and Witten Surveys;

Thence S. 03°03' W., 1317.9 feet; N. 88°25' W., 2034.1 feet; N. 86°55' W., 305.4 feet to the west line of the T. P. Witten Survey, Abstract No. 1369, the northeast corner of the W. S. McBee Survey, Abstract No. 881, the southeast corner of the Elizabeth Adams Survey, Abstract No. 46;

Thence N. 01°03' E., 321.3 feet along the line between the Witten and Adams Surveys;

Thence N. 02°31' E., 956.1 feet along the line between the Witten and Adams Surveys;

Thence N. 86°55' W., 217.5 feet; N. 01°32 E., at 30.5 feet cross the division line between the Elizabeth Adams and the G. H. Richardson Surveys, at 1353.7 feet across the division line between the G. H. Richardson and the Reason Ellmore Surveys, continuing on the same course 2674.9 feet, in all, to a stake in the centerline of the county road on the line between the Reason Ellmore and the W. M. Kilgore Surveys;

Thence N. 88°28' W., 1437.5 feet along the north line of the Reason Ellmore Survey, the south line of the W. M. Kilgore Survey, Abstract No. 695, and the south line of the A. M. Bryson Survey, Abstract No. 195;

Thence N. 04°05' W., 1847.7 feet to a point on the north line of said A. M. Bryson Survey, the south line of the John Yates Survey, Abstract No. 1394;

Thence N. 86°54' W., 3830.9 feet along the south line of said John Yates Survey to the north or west right-of-way line of the M-K-T Railroad;

Thence S. 48°56' W., 71.7 feet along said M-K-T Railroad right-of-way to a point on the line between the John Seymour and the E. L. Stickney Surveys;

Thence N. 03°07' E., 3507.8 feet along the east line of said John Seymour Survey, the most northerly west line of the said E. L. Stickney Survey, and the west line of John Yates Survey;

Thence S. 87°53' E., 1683.9 feet; N. 42°17' E., 1539.6 feet; N. 01°47' E., 621.5 feet to the north line of the John Yates Survey, the south line of the Elizabeth Reed Survey, Abstract No. 1013;

Thence N. 86°40' W., 384.5 feet along the line between the said Yates and Reed Surveys;

Thence N. 02°31' E., 1064.1 feet to the north line of the Elizabeth Reed Survey, the south line of the James W. Dexter Survey, Abstract No. 341;

Thence S. 87°10' E., 1655.8 feet along the line between the James W. Dexter and the Elizabeth Reed Surveys to the west line of the Lafayette Henderson Survey, Abstract No. 583;

Thence N. 02°15' E., 354.7 feet to the northwest corner of said Lafayette Henderson Survey, the southwest corner of the R. J. Hart Survey, Abstract No. 1489;

Thence S. 88°03' E., 465.0 feet along the line between said Henderson and Hart Surveys;

Thence N. 01°56' E., 946.7 feet crossing the north line of said R. J. Hart Survey, the south line of the Edmond Tucker Survey, Abstract No. 1194;

Thence S. 86°37' E., 1780.9 feet along the south line of the properties now or formerly owned by J. M. Fowler and W. S. Sanders, in the said Edmond Tucker Survey;

Thence N. 02°07' E., 1329.9 feet along the east line of the land now or formerly owned by W. S. Sanders to a northeast corner of said Sanders tract;

Thence N. 86°08' W., 364.1 feet with the division line of this tract and the said W. S. Sanders tract;

Thence N. 02°13' E., 1158.5 feet with the division line of this tract and the said W. S. Sanders tract;

Thence S. 78°44' E., 206.8 feet with the division line of this tract and the said W. S. Sanders tract to a stake in the centerline of a ravine, an angle corner of this tract, common to an angle corner of said W. S. Sanders tract and the most southerly southwest corner of a tract now or formerly owned by D. P. Neasbitt, et ux., Edith Neasbitt;

Thence downstream with said ravine the following courses: N. 70°34' E., 145.4 feet; S. 62°45' E., 44.7 feet; N. 89°32' E., 250.1 feet;